

**SUBSTITUTE FOR
HOUSE BILL NO. 5198**

A bill to amend 1954 PA 116, entitled
"Michigan election law,"
(MCL 168.1 to 168.992) by adding section 645a.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 645a. (1) Not later than 10 business days before any**
2 **person, other than a governmental entity, enters into any**
3 **agreement, membership, or program with any governmental entity to**
4 **provide funds, in-kind goods or services, or any other service, for**
5 **election administration, the person must file a certification with**
6 **the secretary of state that certifies whether the person is**
7 **knowingly a recipient, directly or indirectly, of foreign**
8 **donations. The certification must be signed by the person under**
9 **penalty of perjury and dated. As used in this subsection, "person**



1 is knowingly a recipient" means a person that meets any of the
2 following:

3 (a) Has actual knowledge that the source of the funds received
4 is a foreign national.

5 (b) Is aware of facts that would lead a reasonable person to
6 conclude that there is a substantial probability that the source of
7 the funds received is a foreign national.

8 (c) Is aware of facts that would lead a reasonable person to
9 inquire whether the source of the funds received is a foreign
10 national, but the person fails to conduct a reasonable inquiry.

11 (2) A person that files a certification with the secretary of
12 state under subsection (1) must do both of the following:

13 (a) Renew the certification on an annual basis.

14 (b) If the person obtains information, unknown at the time of
15 the filing of the initial or renewed certification, that changes
16 the certification, update the certification not later than 5
17 business days after the person obtains that information.

18 (3) The secretary of state shall maintain a record of each
19 certification filed under subsection (1) and shall post each
20 certification on the department of state's website.

21 (4) Each governmental entity must provide to the secretary of
22 state a quarterly report that lists any person that provides funds,
23 in-kind goods or services, or any other service to that
24 governmental entity for election administration. The secretary of
25 state shall audit the quarterly reports to ensure compliance with
26 this section.

27 (5) A governmental entity shall not enact or enforce any law
28 or ordinance that conflicts with this section. Any law or ordinance
29 that conflicts with this section is void and unenforceable.



1 (6) The secretary of state shall promulgate rules to implement
2 this section under the administrative procedures act of 1969, 1969
3 PA 306, MCL 24.201 to 24.328.

4 (7) If a person fails to provide the certification, or fails
5 to provide an accurate certification, to the secretary of state as
6 required under subsection (1), the governmental entity is
7 prohibited from entering into, or continuing to participate in, the
8 agreement, membership, or program. The prohibition under this
9 subsection applies only to any of the following that are entered
10 into after the effective date of the amendatory act that added this
11 section:

12 (a) A new agreement, membership, or program.

13 (b) A renewal or extension of an existing agreement,
14 membership, or program.

15 (8) A person that knowingly fails to provide an accurate or
16 updated certification in compliance with this section is guilty of
17 a misdemeanor punishable, if the person is an individual, by a fine
18 of not more than \$1,000.00, or, if the person is not an individual,
19 by a fine of not more than \$10,000.00.

20 (9) As used in this section:

21 (a) "Election administration" means to participate in any way
22 in the process of conducting or implementing an election. Election
23 administration does not include a postelection canvass, recount,
24 contest, or audit process.

25 (b) "Foreign donation" means a payment, gift, subscription,
26 loan, advance, deposit, or anything of value provided by a foreign
27 national without consideration.

28 (c) "Foreign national" means any of the following:

29 (i) An individual who is not a citizen of the United States.



1 (ii) A government, or subdivision, of a foreign country or a
2 municipality of a foreign country.

3 (iii) A foreign political party.

4 (iv) Any entity, including, but not limited to, a partnership,
5 association, corporation, organization, or other combination of
6 persons, that is organized under the laws of, or has its principal
7 place of business in, a foreign country.

8 (d) "Governmental entity" means a county, city, township,
9 village, or other municipal entity.

10 (e) "Person" means an individual, partnership, association,
11 corporation, organization, or any other combination or group of
12 individuals.